

VCU314147 Montes De Oca, Jeniffer vs. Saputo Cheese USA Inc.

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-07-27

Motion: (1) Defendant Stafford's Motion for Judgment on the Pleadings; (2) Defendant Stafford's Motion for Protective Order
re: Discovery

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Re: Montes De Oca, Jeniffer vs. Saputo Cheese USA Inc.

Case No.: VCU314147

Date: July 27, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: (1) Defendant Stafford's Motion for Judgment on the Pleadings; (2) Defendant Stafford's Motion for Protective Order
re: Discovery

Tentative Ruling: (1) To grant the motion without leave to amend; (2) To find the motion moot by the ruling on motion for judgment on the pleadings.

(1) Defendant Stafford's Motion for Judgment on the Pleadings

Facts and Analysis

The sole issue on this motion for judgment on the pleadings is whether an Defendant Bill Stafford, alleged to be a manager of Plaintiff, can be held liable under the fourth cause of action for whistleblower retaliation under Labor Code section 1102.5.

Defendant Stafford contends that the plain language of section 1102.5 does not provide for individual liability.

In opposition, Plaintiff notes an amendment to section 1102.5 in 2013 to include the phrase "or any person acting on behalf of the employer" imposes such individual liability.

Labor Code section 1102.5 provides in part:

(a) An employer, or any person acting on behalf of the employer, shall not make, adopt, or enforce any rule, regulation, or policy preventing an employee from disclosing information to a government or law enforcement agency, to a person with authority over the employee, or to another employee who has authority to investigate, discover, or correct the violation or noncompliance, or from providing information to, or testifying before, any public body conducting an investigation, hearing, or inquiry, if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation, regardless of whether disclosing the information is part of the employee's job duties.

(b) An employer, or any person acting on behalf of the employer, shall not retaliate against an employee for disclosing information, or because the employer believes that the employee disclosed or may disclose information, to a government or law enforcement agency, to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance, or for providing information to, or testifying before, any public body conducting an investigation, hearing, or inquiry, if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation, regardless of whether disclosing the information is part of the employee's job duties.

(c) An employer, or any person acting on behalf of the employer, shall not retaliate against an employee for refusing to participate in an activity that would result in a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation.

(d) An employer, or any person acting on behalf of the employer, shall not retaliate against an employee for having exercised their rights under subdivision (a), (b), or (c) in any former employment.

Neither party has presented the Court, and the Court's research did not uncover, a reported California case on this issue and the District Court in *Mewawalla v. Middleman* notes California courts "ha[ve] not spoken on the express issue of whether a supervisor can be liable under California Labor Code Section 1102.5." (*Mewawalla v. Middleman* (N.D. Cal. 2022). 601 F. Supp. 3d 574, 608.)

Further, the Court notes section 1105, entitled "Recovery of damages by employee" states "Nothing in this chapter shall prevent the injured employee from recovering damages from his employer for injury suffered through a violation of this chapter." As this section does not discuss recovery from an individual, the Court finds this leans in favor of a finding that section 1102.5 does not apply to individuals.

Additionally, 1102.6 entitled "Burden of proof in action under Section 1102.5" states:

"In a civil action or administrative proceeding brought pursuant to Section 1102.5, once it has been demonstrated by a preponderance of the evidence that an activity proscribed by Section 1102.5 was a contributing factor in the alleged prohibited action against the employee, the employer shall have the burden of proof to demonstrate by clear and convincing evidence that the alleged action would have occurred for legitimate, independent reasons even if the employee had not engaged in activities protected by Section 1102.5."

Like the above, section 1102.6 do not discuss an individual defendant's burden of proof as opposed to the employer's burden.

The District Court in *Toranto v. Jaffurs* (S.D. Cal. 2018) 297 F.Supp.3d 1073, states the following:

"No California court has addressed the issue of individual liability since the amendment to the language. All district courts, but one, that have addressed the issue have found no individual liability. See *Tillery v. Lollis*, 2015 WL 4873111 (E.D. Cal. 2015) (Looking to California Supreme Court discussion of language similar to the language of section 1102.5 and finding no individual liability); *Vera v. Con-way Freight, Inc.*, 2015 WL 1546178 (C.D. Cal. 2015) (Finding the "statutory text, structure

and legislative history all indicate that only employers-no individual employees-are liable for violations of the statute."");] Conner v. Aviation Services of Chevron, U.S.A., 2014 WL 5768727 (N.D. Cal. 2014) (Finding the plaintiff failed to point to any language establishing individual liability and that section 1104 of the Labor Code expressly stated, in all prosecutions under the pertinent chapter, employers are responsible for acts of its manager, officers, agents and employees.). While the court in De La Torre v. Progress Rail Servs. Corp., 2015 WL 4607730 (C.D. Cal. 2015) found the language ambiguous, it made no determination as to whether the statute permitted individual liability when it remanded the action to state court. (Id.) This Court is persuaded by the district courts' distillation of the statutory language and, similarly, finds no individual liability under section 1102.5. As such, Defendant's motion is granted as to the claim for retaliation under section 1102.5." (Id. at 1105.)

(See also Vierria v. Cal. Highway Patrol (E.D.Cal. 2009) 644 F.Supp.2d 1219, 1244 [finding that section 1102.5 does not provide individual liability for managers and supervisors because "the statute is meant to establish prohibited activity by employers, rather than individuals."].)

On the other hand, the language of section 1102.5 was amended to refer not only to an "employer," but also "any person acting on behalf of the employer." (Lab. Code § 1102.5(a).)

However, no amendments containing such language were made as to the burden of proof or damages sections noted above.

The Court notes further that Labor Code sections 558.1 and 1197.1 contain express language providing for individual liability:

An "employer or other person acting on behalf of an employer . . . may be held liable as the employer for such violation" (Labor Code §558.1(a)); and

An "employer or other person acting either individually or as an officer, agent, or employee of another person, who pays or causes to be paid to any employee a wage less than the minimum fixed by an applicable state or local law . . . shall be subject to a civil penalty . . ." (Labor Code §1197.1(a).)

Section 1102.5 does not contain similar express language imposing liability on individuals who "act[] on behalf of the employer" despite the amended section 1102.5(a) language.

Again, the Court recognizes the federal rulings are, at most, persuasive authority, but under the sum of the above, the Court finds liability against an individual, such as Defendant Stafford, is unavailable under Labor Code section 1102.5.

Therefore, the Court grants the motion without leave to amend.

(2) Defendant Stafford's Motion for Protective Order re: Discovery

As the Court has granted the motion for judgment on the pleadings without leave to amend as to Defendant Stafford, the Court finds the request for protective order regarding discovery responses moot. No cause of action currently lies against Defendant Stafford.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.